BY COMMISSIONER RESOLUTION NO. 97-98

MEADOW POINTE DEVELOPMENT ORDER AMENDMENT
DEVELOPMENT OF REGIONAL IMPACT
SUBSTANTIAL DEVIATION DETERMINATION

A RESOLUTION AMENDING RESOLUTION NO. 90-32, AS AMENDED, TO APPROVE REVISIONS TO THE DEVELOPMENT ORDER FOR THE MEADOW POINTE (F.K.A. TROUT CREEK, WILLIAMSBURG WEST, AND DEERFIELD VILLAGE) DEVELOPMENT OF REGIONAL IMPACT AND DETERMINING THAT THE PROPOSED CHANGE DOES NOT CONSTITUTE A SUBSTANTIAL DEVIATION TO THE APPROVED DEVELOPMENT ORDER; PROVIDING AN EFFECTIVE DATE

WHEREAS, on October 9, 1973, the Board of County Commissioners of Pasco County adopted by resolution a Development of Regional Impact Development Order approving, with conditions, the Deerfield Village Development of Regional Impact; and,

WHEREAS, the development order was amended by the Board of County Commissioners by Resolution No. 89-10, dated October 11, 1988; Resolution No. 89-29, dated November 15, 1988; Resolution No. 89-69, dated January 4, 1989, rescinding Resolution Nos. 89-10 and 89-29; Resolution No. 90-32, a Substantial Deviation Development Order approved on November 21, 1989; and Resolution No. 92-50, dated November 12, 1991; and,

WHEREAS, on September 6, 1996, Trout Creek Development Corporation filed a notification requesting a change to an approved development order pursuant to Section 380.06(19), Florida Statutes.

NOW, THEREFORE, BE IT RESOLVED by the Board of County Commissioners of Pasco County, Florida, in regular session duly assembled that:

A. The Board of County Commissioners of Pasco County makes the following findings of fact:

FINDINGS OF FACT:

1. Resolution No. 90-32, as amended, specifically approves development of Phase I and conceptually approves development of Phase II, subject to an additional traffic analysis to verify the results of the approved traffic analysis on which Resolution No. 90-32 was based (the "1989 Analysis").

2. Trout Creek Development Corporation has completed the required traffic analysis in accordance with the methodology approved by reviewing agencies (the "1996 Analysis") and has filed a Notification of Proposed Change to a previously approved Development of Regional Impact Order on Florida Department of Community Affairs Form BRM-08-86 (the "NOPC").

3. The 1996 Analysis verified the accuracy of the proportionate share costs determined by the 1989 Analysis as follows:

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1989 Analysis Proportionate Share Cost for Phases I and II	$2,524,327.00
1996 Analysis Proportionate Share Cost for Phases I and II	2,589,161.00
Net Additional Proportionate Share Cost	$ 64,834.00 (+2.5%)

4. The developer has constructed the Two Million Five Hundred Fifty-Three Thousand Three Hundred Fourteen and 40/100 Dollars ($2,553,314.40) required pipeline improvement pursuant to Resolution No. 90-32 and has agreed to pay impact fees for Phase II development pursuant to the Pasco County New Development Fair-Share Contribution for Road Improvements Ordinance, which fees are estimated to be in excess of Six Million and 00/100 Dollars ($6,000,000.00), for a total contribution in excess of Eight Million Five Hundred Thousand and 00/100 Dollars ($8,500,000.00).

5. The developer's required contributions pursuant to this resolution exceed his proportionate-share costs.

6. The developer has submitted the NOPC simultaneously to the Pasco County Growth Management/Zoning Department, the Tampa Bay Regional Planning Council, and the Florida Department of Community Affairs.

7. The proposed change specifically approves the development of Phase II, subject to the requirement that the developer pay its proportionate fair share of the costs to mitigate the traffic impacts of Phase II.

8. The Pasco County Board of County Commissioners is the local governing body having jurisdiction over the review and approval of said Development of Regional Impact in accordance with Section 380.06, Florida Statutes.

9. The Board of County Commissioners of Pasco County has given fifteen (15) days notice and scheduled a public hearing for November 13, 1996, and continued said public hearing to November 19, 1996, and held a public hearing on December 10, 1996.

10. At the public hearing, all parties were afforded the opportunity to present evidence and argument on all issues and submit rebuttal evidence.

11. Additionally, at said public hearing, any member of the general public requesting to do so was given the opportunity to present written or oral communications.

12. The Board of County Commissioners has received and considered the evidence submitted by the applicant, the recommendations of the Pasco County Growth Management/Zoning Department and the Development Review Committee, and the comments by the Tampa Bay Regional Planning Council and the Department of Community Affairs staffs.

B. The Board of County Commissioners of Pasco County makes the following conclusions of law:

CONCLUSIONS OF LAW:

1. Based on the clear and convincing evidence submitted to and considered by the Board of County Commissioners, the amendments approved hereby do not constitute a

substantial deviation and, therefore, do not require further Development of Regional Impact review pursuant to Subsection 380.06(19), Florida Statutes.

2. The Meadow Pointe Development of Regional Impact, as amended hereby, will not unreasonably interfere with the achievement of the objectives of the State Land Development Plan.

3. The amendments approved by this resolution are in accordance with the requirements of Section 380.06, Florida Statutes, and are consistent with the Pasco County Comprehensive Plan adopted pursuant to Section 163, Florida Statutes.

4. The impacts of the proposed development are adequately addressed by the conditions of this development order, as amended, pursuant to Section 380.06, Florida Statutes.

5. The proposed development is not in an Area of Critical State Concern as designated pursuant to Section 380.05, Florida Statutes.

6. These proceedings have been duly conducted pursuant to applicable law and regulations.

7. Subject to the requirements of Section C.3 of the development order, as amended hereby, Phases I and II of the project are and remain vested pursuant to Subsection 163.3167(8), Florida Statutes.

C. Having made the above findings of fact and above conclusions of law, it is ORDERED that the Meadow Pointe Development Order is hereby amended as follows:

1. Phase II of the Meadow Pointe Development of Regional Impact is hereby specifically approved subject to the conditions of this resolution. The changes approved by this resolution are not a substantial deviation and, therefore, do not require further Development of Regional Impact review pursuant to Chapter 380.06(19), Florida Statutes, as amended.

2. Section C.3 of Resolution No. 90-32 is hereby amended to add the following new Subsections (f) and (g):

"(f) Based on the traffic analysis submitted with this NOPC, the "proportionate share" contribution by the Developer necessary to mitigate the transportation impacts of Phases I and II have been determined to be Two Million Five Hundred Eighty-Nine Thousand One Hundred Sixty-One and 00/100 Dollars ($2,589,161.00), rather than Two Million Five Hundred Twenty-Four Thousand Three Hundred Twenty-Seven and 00/100 Dollars ($2,524,327.00) as determined by the 1989 traffic analysis. The Developer has completed the Two Million Five Hundred Fifty-Three Three Hundred Fourteen and 40/100 Dollars ($2,553,314.40) Required Improvement, and shall be required to pay impact fees to Pasco County for Phase II development pursuant to the Pasco County New Development Fair Share Contribution for Road Improvements Ordinance, No. 90-04, as amended, said fees are estimated to be in excess of Six Million and 00/100 Dollars ($6,000,000.00). Compliance

by the Developer with the requirements of this Section C.3(f) shall fully satisfy the Developer's obligation to mitigate the transportation impacts for Phases I and II and shall ensure compliance with the Level of Service Standards in accordance with the Pasco County Concurrency Management System.

"(g) Pasco County hereby assures the Developer that the fees collected pursuant to Section C.3(f) above shall be used to maintain an acceptable level of service on the Project's roadway network and that the regional highway facilities will remain operating at an acceptable level of service under the Pasco County Comprehensive Plan."

3. Except as specifically amended hereby, the provisions of Resolution No. 90-32 remain in full force and effect.

4. Based on the clear and convincing evidence submitted to and considered by the Board of County Commissioners, the amendments approved hereby do not constitute a substantial deviation and, therefore, do not require further Development of Regional Impact review pursuant to Subsection 380.06(19), Florida Statutes.

5. The County shall render certified copies of this order to the developer, the Department of Community Affairs, the Tampa Bay Regional Planning Council, and upon attorneys of record in these proceedings.

6. This order shall be deemed rendered upon transmittal of copies of this order to the recipients stated in Paragraph 5 above.

7. This resolution shall take effect immediately upon its adoption.

DONE AND RESOLVED this 10th day of December, 1996.

(SEAL)

ATTEST:

BY: Rebecca S Hawk/D.C
JED PITTMAN, CLERK

BOARD OF COUNTY COMMISSIONERS
OF PASCO COUNTY, FLORIDA

BY: David H. Clark
DAVID H. CLARK, JR., CHAIRMAN

APPROVED AS TO LEGAL FORM AND CONTENT
Office of the County Attorney

BY: Teresa E. Rose
ATTORNEY

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NOTICE OF ADOPTION OF AN AMENDMENT TO THE DEVELOPMENT ORDER FOR THE MEADOW POINTE (F/K/A TROUT CREEK) DEVELOPMENT OF REGIONAL IMPACT (DRI)

PURSUANT TO Section 380.06(15)(f), Florida Statutes, notice is hereby given that the Pasco County Board of County Commissioners, by Resolution No. 97-98 dated December 10, 1996, has adopted an amendment to the Development Order for a Development of Regional Impact known as Meadow Pointe, f/k/a Trout Creek (Resolution No. 90-32). The above-referenced Development Order constitutes a land development regulation applicable to the property described in Exhibit "A" of the Development Order.

A legal description of the property concerned, the Development Order, and the Resolution amending the Development Order may be examined upon request at the Office of the Clerk to the Board of County Commissioners of Pasco County, Pasco County Courthouse, Dade City, Florida.

The recording of this Notice shall not constitute a lien, cloud, or encumbrance on the real property described in the above-mentioned Exhibit "A" nor actual nor constructive notice of any of the same under the authority of Section 380.06(15)(f), Florida Statutes.

BOARD OF COUNTY COMMISSIONERS
OF PASCO COUNTY, FLORIDA

BY: _____
DAVID H. CLARK, JR., CHAIRMAN

STATE OF FLORIDA)
COUNTY OF PASCO)

The foregoing Notice of Adoption of Development Order was acknowledged before me this 10 day of December, 1996, as Chairman of the BOARD OF COUNTY COMMISSIONERS OF PASCO COUNTY, FLORIDA. He is personally known to me and did not take an oath.

Rebecca S. Hawk
~~Notary Public~~ Deputy Clerk

~~Printed Name of Notary~~

My Commission Expires:

APPROVED AS TO LEGAL FORM AND CONTENT
Office of County Attorney

BY: _____
Attorney

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